

TABLE OF CONTENTS

BERNARDS TOWNSHIP - TOWNSHIP COMMITTEE MINUTES

December 28, 2023 – COMBINED AGENDA/REGULAR MEETING

(Click on the page number to go directly to that page)

CALL TO ORDER	3
ROLL CALL	3
EXECUTIVE SESSION (IF REQUIRED)	3
PRESENTATION.....	3
<i>RESOLUTION #2023-0497 - RESOLUTION OF CELEBRATION HONORING THE SHARPE FAMILY SINGERS</i>	<i>3</i>
PUBLIC WORK SESSION (IF REQUIRED)	3
REPORTS	3
CORRESPONDENCE.....	3
PUBLIC COMMENT.....	3
STAFF COMMENTS, TOWNSHIP COMMITTEE COMMENTS AND BOARD / LIAISON REPORTS	4
FIRE & RESCUE APPOINTMENT	4
UNFINISHED BUSINESS.....	4
<i>ORDINANCE #2540 - ACCEPTING A RIPARIAN ZONE CONSERVATION EASEMENT ON PROPERTY LOCATED AT 27 QUINCY ROAD; BLOCK 5402, LOT 29, FROM RICHARD W. CHAPIN AND ANITA DAWSON TO THE TOWNSHIP OF BERNARDS – MAP – PUBLIC HEARING.....</i>	<i>4</i>
<i>ORDINANCE #2541 - AN ORDINANCE OF THE TOWNSHIP OF BERNARDS, COUNTY OF SOMERSET, STATE OF NEW JERSEY, AMENDING, REVISING AND SUPPLEMENTING THE CODE OF THE TOWNSHIP OF BERNARDS, CHAPTER 21, “REVISED LAND USE ORDINANCES,” TO CREATE THE WESTGATE VILLAGE MIXED USE SENIOR OVERLAY ZONE WITHIN THE E-3 ZONE – MAP – PLANNING BOARD REPORT - PUBLIC HEARING</i>	<i>4</i>
<i>ORDINANCE #2542 - AN ORDINANCE TO AMEND THE REVISED GENERAL ORDINANCES OF THE TOWNSHIP OF BERNARDS, SECTION 2-7 ENTITLED “POLICE DEPARTMENT” OF THE BERNARDS TOWNSHIP GENERAL ORDINANCES TO ADD SUBSECTION 2-7.16 ENTITLED “OUTSIDE EMPLOYMENT OF OFF-DUTY POLICE OFFICERS” – PUBLIC HEARING</i>	<i>10</i>
NEW BUSINESS	11
CONSENT AGENDA	11
<i>Resolution #2023-0498 - Approval of the Bill List Dated 12/28/2023.....</i>	<i>11</i>
<i>Resolution #2023-0449 - In Recognition of Service to Bernards Township Chris Hurst – Emergency Management Council 24 years.....</i>	<i>13</i>
<i>Resolution #2023-0469 - Appointment of 2024 Public Defender – Bedminster Township, Borough of Peapack and Gladstone, Borough of Bernardsville, and Bernards Township Shared Municipal Court Awarded to Scott C. Mitzner, Esq., of the Firm Mitzner & Mitzner, P.A.</i>	<i>13</i>
<i>Resolution #2023-0470 - Appointment of 2024 Municipal Prosecutor – Bedminster Township, Borough of Peapack and Gladstone, Borough of Bernardsville, and Bernards Township Shared Municipal Court Awarded to Stephen O. Davis, Esq., of the firm DiFrancesco Bateman, Kunzman, Davis, Lehrer & Flaum, P.C.</i>	<i>14</i>
<i>Resolution #2023-0482 - 2024 Fee Schedule for Pleasant Valley Pool.....</i>	<i>14</i>
<i>Resolution #2023-0488 - 2024 Fee Schedule & Policies for Parks and Recreation.....</i>	<i>16</i>
<i>Resolution #2023-0491 - Resolution Canceling Public Grant Appropriations and Grant Receivable Balances ..</i>	<i>20</i>
<i>Resolution #2023-0496 - Resolution Authorizing the Issuance of a Duplicate Tax Sale Certificate Pursuant to N.J.S.A. 54:5-52.1</i>	<i>20</i>
<i>Resolution #2023-0499 - Canceling General Capital Ordinance Appropriation Balance for Completed Capital Projects.....</i>	<i>21</i>
<i>Resolution #2023-0500 - Award of Bid for Somerville Road Path to AA Berms, LLC, PO Box 180, Belleville, NJ 07109 - In the Amount of \$200,786.00</i>	<i>21</i>

<i>Resolution #2023-0501 - Canceling Current Fund 2023 Budget Appropriation Balances</i>	<i>22</i>
<i>Resolution #2023-0502 - Ratification and Approval of PBA/SOA 357 Union Contracts January 1, 2024 through December 31, 2027</i>	<i>24</i>
<i>Resolution #2023-0503 - Approval of the Memorandum of Agreement Between Bernards Township and the PBA/SOA Local No. 357</i>	<i>24</i>
<i>Resolution #2023-0504 - Authorizing the Establishment of an HRA Program in conjunction with State Health Benefits</i>	<i>25</i>
<i>Resolution #2023-0468 - Appointment of Municipal Court Judge - Bedminster Township, Borough of Peapack and Gladstone, Borough of Bernardsville, and Bernards Township Shared Municipal Court Honorable Katherine E. Howes, Esq.</i>	<i>25</i>
<i>Approval of Minutes:.....</i>	<i>26</i>
<i>12/12/2023 Open Session Minutes and Closed Session Minutes</i>	<i>26</i>
EXECUTIVE SESSION (IF REQUIRED)	26
ADJOURNMENT	26

CALL TO ORDER

The mayor called the meeting to order at 7:00 PM in the Municipal Building, 1 Collyer Lane, Basking Ridge, NJ. Those assembled saluted the flag and the mayor read the open public meetings statement in accordance with the law.

ROLL CALL

Present: Asay, Baumann, Fields, McNally
Absent: Baldassare, Jr.,
Also Present: Administrator Monaco, Attorney Belardo (via telephone), and Municipal Clerk Kieffer

EXECUTIVE SESSION (if required)

None.

PRESENTATION

[Resolution #2023-0497](#) - *Resolution of Celebration Honoring the Sharpe Family Singers*

The mayor and township committee members recognized the Sharpe Family Singers for their achievements and presented them with the resolution. Motion by Asay, second by Fields, that Resolution #2023-0497 be approved.

Roll Call:

Aye: Asay, Baumann, Fields, McNally
Nay:
Abstain:

Motion carried.

WHEREAS, the Sharpe Family Singers whose members are Ron, Barb and their four children Samantha, Logan, Conner, and Aiden who live in Basking Ridge, NJ and have been singing together for as long as they have been a family; and

WHEREAS, the Sharpe Family Singers with Broadway roots rose to fame in 2021 when a video of their performance on social media went viral; and

WHEREAS, the Sharpe Family Singers released their first album, A Sharpe Family Christmas, in November 2020; and

WHEREAS, the Sharpe Family Singers auditioned in 2023 season 18 of “NBC’s American’s Got Talent” by performing “How Far I’ll Go” from the movie “Moana” and continued on to make it into the semi-finals; and

WHEREAS, Bernards Township is extremely proud to be the Sharpe Family Singers hometown and wishes to recognize and honor them for their accomplishments.

NOW, THEREFORE, BE IT RESOLVED by the Township Committee of the Township of Bernards, that we do hereby recognize and congratulate the Sharpe Family Singers on their achievements and wish them well in their future endeavors.

PUBLIC WORK SESSION (if required)

None.

REPORTS

None.

CORRESPONDENCE

None.

PUBLIC COMMENT

The mayor opened public comment.

Todd Edelstein, 172 Riverside Drive – Congratulated Lieutenant Hurst on his years of service and wished all a happy new year.

No additional comments were heard and the Mayor closed the public comment period.

STAFF COMMENTS, TOWNSHIP COMMITTEE COMMENTS AND BOARD / LIAISON REPORTS

Staff provided comments and committee members reported on their appointed boards and recent activities.

FIRE & RESCUE APPOINTMENT

None.

UNFINISHED BUSINESS

[Ordinance #2540](#) - *Accepting a Riparian Zone Conservation Easement on Property Located at 27 Quincy Road; Block 5402, Lot 29, from Richard W. Chapin and Anita Dawson to the Township of Bernards – [Map](#) – Public Hearing*

The clerk read the ordinance by title and the mayor opened the public hearing. There were no comments and the hearing was closed.

Motion by Fields, second by Baumann, that Ordinance #2540 be adopted and advertised as required by law.

Roll Call:

Aye: Asay, Baumann, Fields, McNally

Nay:

Abstain:

Motion carried.

BE IT ORDAINED, by the Township Committee of the Township of Bernards, in the County of Somerset and State of New Jersey as follows:

1. Pursuant to the Local Land and Buildings Law, N.J.S.A. 40A:12-1 et seq., Bernards Township hereby accepts from Richard W. Chapin and Anita Dawson, with a mailing address at 27 Quincy Road, Basking Ridge, New Jersey, 07920, a Riparian Zone Conservation Easement on Block 5402, Lot 29, in Bernards Township.

2. The easement is on file with the office of the Township Clerk.

3. This Ordinance shall take effect upon its final passage and publication according to law.

[Ordinance #2541](#) - *An Ordinance of the Township of Bernards, County of Somerset, State of New Jersey, Amending, Revising and Supplementing the Code of the Township of Bernards, Chapter 21, "Revised Land Use Ordinances," to Create the Westgate Village Mixed Use Senior Overlay Zone within the E-3 Zone – [Map](#) – [Planning Board Report](#) - Public Hearing*

The clerk read the ordinance by title, the committee acknowledged the Planning Board's Report finding that the ordinance was not inconsistent with the Master Plan, and the mayor opened the public hearing.

Todd Edelstein, 172 Riverside Drive – Commented on Ordinance #2541, section 4A permitted principal uses.

There were no further comments and the hearing was closed.

Motion by Baumann, second by Asay, that Ordinance #2541 be adopted and advertised as required by law.

Roll Call:

Aye: Asay, Baumann, Fields, McNally

Nay:

Abstain:

Motion carried.

BE IT ORDAINED by the Township Committee of the Township of Bernards, County of Somerset and State of New Jersey, that Chapter 21, entitled "Land Development", of the Code of the Township of Bernards shall be amended, revised and supplemented as follows:

Part I. Existing § 21-10.5, "E-1, E-2, E-3, E-4 and E-5 - Office Zones," is amended as follows (new text is double underlined; deleted text is ~~stricken~~):

§ 21-10.5 E-1, E-2, E-3, E-4 and E-5 - Office Zones.

[Ord. #585, § 403D.2; Ord. #641; Ord. #1068, § 2; Ord. #1103, § 9; Ord. #1144; Ord. #1793, 7-12-2005 amended]

a. Uses.

1. Permitted Uses. These zones are designed for office and laboratory uses. The following uses are permitted:

- (a) Administrative, business, or executive office buildings.
- (b) Professional office buildings.
- (c) Scientific or research laboratories.
- (d) Data processing centers.
- (e) Hospitals and medical clinics.
- (f) Farming, agriculture and horticulture not including the raising or keeping of livestock.
- (g) Public parks, roads and other public purpose uses.
- (h) Child-care centers. The following additional uses are permitted in specific zones:
- (i) Banks and other financial institutions in the E-2, E-3, E-4 and E-5 Zones only.
- (j) Radio or television studios in the E-2 Zone only.
- (k) Light manufacturing in the E-2 Zone only.
- (l) Storage and maintenance of vehicles operated by or as a business in the E-4 Zone only.
- (m)(Reserved)
- (n) Country inns and country inns with restaurants/taverns in the E-2 Zone only.

2. Accessory Uses. Accessory uses customarily incidental to the above permitted uses.

3. Conditional Uses: **[Ord. #1407, 5-9-2000, amended]**

- (a) Public utilities in accordance with Section 21-12.
- (b) Conference inn, as defined in Section 21-3, in the E-1 and E-2 Zones only and in accordance with Section 21-12.
- (c) Retail sales and services, retail outlet stores, specialty food stores, health clubs and restaurants in the E-2 Zone only and in accordance with Section 21-12.3n.
- (d) Retail sales and services, retail outlet stores, specialty food stores and restaurants in the E-3 Zone only and in accordance with Section 21-12.3.o.
- (e) Houses of worship and/or houses of worship with clergyman's residence on the same premises in accordance with Section 21-12. **[Ord. #2242, 10-15-2013, added]**
- (f) Public and private schools in accordance with Section 21-12. **[Ord. #2242, 10-15-2013, added]**

b. Requirements. The requirements listed in Table 402 must be complied with in the E-1 through E-5 Zones.

c. Westgate Village Mixed Use Senior Overlay Zone within the E-3 Zone.

1. Where Permitted. The Westgate Village Mixed Use Senior Overlay Zone is an overlay zone that adds an alternative development option for mixed use development only in the E-3 Zone and only on property located at 477 Martinsville Road and presently occupied by Westgate Corporate Center, specifically Lot 7, Block 11301. The underlying E-3 Zone provisions shall apply if the site is not developed in accordance with the Westgate Village Mixed Use Senior Overlay Zone development option.

2. Applicability of Other Regulations. Except as otherwise specified in this subsection (§ 21-10.5.c), all development within the Westgate Village Mixed Use Senior Overlay Zone shall be subject to all other provisions of this chapter. Where a provision set forth elsewhere in this chapter conflicts with a provision set forth in this subsection, this subsection shall supersede.

3. Mixed Use Development. Multiple principal buildings, principal uses, accessory structures and accessory uses shall be permitted. Single buildings may contain multiple uses.

4. Permitted Principal Uses.

(a) Multifamily age-restricted dwelling units where the head of the household is a minimum age of either 62 years, or 55 years, and meets the provisions of 42 U.S.C. §§3601 et seq. (also, see § 21-85.2, Definitions).

(b) Age-restricted affordable units (as defined at N.J.A.C. 5:80-26.2 and § 21-85.2, Definitions).

(c) A hotel or extended stay hotel, which may include conference facilities, event space and corporate suites with full kitchens and living accommodations.

(d) Retail Sales and Services.

(e) Restaurants.

(f) Administrative, business, executive and professional offices.

(g) Banks and other financial institutions.

(h) Child care centers.

5. Permitted Accessory Uses.

(a) Accessory uses customarily incidental to the above permitted principal uses.

6. Prohibited Uses.

(a) Any use not designated as a permitted principal use or accessory use is prohibited.

7. Maximum Number of Multifamily Dwelling Units: 374, of which 15% of rental units and 20% of for-sale units shall be set aside and affordable to low and moderate income households.

8. Maximum Number of Hotel or Extended Stay Hotel Guest Rooms: 150.

9. Maximum Floor Area for Nonresidential Uses (excludes multifamily dwelling units and related multifamily amenities):

(a) Maximum Floor Area for a Building Containing a Hotel or Extended Stay Hotel: 216,687 square feet.

(b) Maximum Floor Area for Nonresidential Uses Not Located Within a Building Containing a Hotel or Extended Stay Hotel: 230,519 square feet.

10. Maximum impervious coverage: 80%.

11. Area, Yard and Building Requirements.

(a) Minimum tract area: 30 acres.

(b) Minimum tract frontage: 700 feet.

(c) Minimum tract width: 700 feet.

(d) Principal Buildings.

(1) Minimum building setback from the Martinsville Road right-of-way: 150 feet.

(2) Minimum building setback from a residential zone: 65 feet.

(3) Minimum building setback from any other property line: 50 feet.

(4) Minimum building setback from the curbline or edge of pavement of any internal street, parking space or other vehicular area excluding entrances to under-building parking: 10 feet.

(5) Minimum distance between principal buildings: 50 feet.

(6) Building projections such as canopies, awnings, balconies and similar unenclosed features and architectural elements designed to provide visual interest may extend into the above required setbacks/distances by not more than 10 feet.

(7) Maximum height.

[a] Multifamily buildings: four stories, including any parking level, and 60 feet, as measured from finished grade based on the grading plan approved by the Board. If the building is located at least 175' feet from the Martinsville Road right-of-way, the maximum height shall be four stories, including any parking level, and 70 feet.

[b] Hotel or extended stay hotel building: four stories, including any parking level, and 60 feet, as measured from finished grade based on the grading plan approved by the Board. If the building is located at least 175' feet from the Martinsville Road right-of-way and from any residential zone, the maximum height shall be five stories, including any parking level, and 70 feet.

[c] Other principal buildings: as set forth in this chapter for the E-3 Zone.

(e) Accessory Structures.

(1) Accessory structures shall not be located in a front yard.

(2) Accessory structures shall not be located within 50 feet of any property line except when specifically approved by the Board.

(3) Freestanding parking structures shall not be located within 50' of any property line.

(4) Maximum height of accessory structures: 20 feet, except a freestanding parking structure containing not more than four levels may be up to 42 feet high measured to the top of the deck wall and 52 feet high measured to the top of the stair tower. A height exceeding 20 feet shall be permitted only when the Board finds that the parking structure is adequately screened from adjoining residential zones and that vehicles in the structure are adequately screened from public view.

12. Parking and Loading.

(a) Parking spaces may be constructed as surface parking or within a building or structure, and shall be provided in accordance with the New Jersey Residential Site Improvement Standards (RSIS: N.J.A.C. 5:21) and this chapter.

(b) Minimum parking setback from the Martinsville Road right-of-way: 75 feet.

(c) Minimum parking setback from a residential zone: 65 feet.

(d) Minimum parking setback from any other property line: 50 feet.

(e) Loading spaces shall be provided in accordance with this chapter, except shared loading spaces shall be permitted. Where multiple uses occupy a single building, the minimum required number of loading spaces shall be based on the total floor area of the building, regardless of the number of uses in the building.

13. Buffers.

(a) Buffers designed and constructed in accordance with Section 21-28 shall be required where the tract in the Westgate Village Mixed Use Senior Overlay Zone abuts a residentially zoned lot or lots.

(b) In addition to the exceptions set forth in § 21-28.2.b, accessory uses and accessory structures not exceeding 500 square feet in footprint or 20 feet in height shall be permitted in buffers when specifically approved by the Board.

14. Mechanical equipment and other utility hardware placed on the roof of any buildings shall be properly screened from public view.

15. All uses shall be serviced by public water and public sanitary sewer systems.

16. Signs.

(a) Multifamily Uses. For each neighborhood in the development, one main identification sign not exceeding 30 square feet in area and six feet in height shall be permitted. The sign(s) shall be located not less than 20 feet from all tract property lines.

(b) Nonresidential Uses. Freestanding and wall-mounted signs shall be permitted as set forth in this chapter for the E-3 Zone.

(c) In addition to the above, the Board may approve directional, wayfinding and building identification sign(s) which are not intended to be visible from off site, provided each such sign shall not exceed 24 square feet in area.

17. Neighborhood Recreation Amenities. The site plan shall include adequate neighborhood recreation amenities to serve each age group residing in the multifamily dwelling units. On-site recreation amenities shall be subject to approval by the Board and shall provide formal and informal recreation activities that may include, but not be limited to, some of the following: outdoor swimming areas, outdoor seating areas, tot lots, playgrounds, play fields, and similar indoor or outdoor active or passive recreation areas. Recreation amenities may also include paths for bike riding, hiking or walking.

18. Site Plan. The site plan, including the building and parking layout and the location of preserved wooded areas, shall be organized substantially in accordance with Figure Z of this chapter, provided that the building and parking layout shown on Figure Z is meant as a guideline and may be modified by the developer to reflect market conditions, site constraints, applicable development regulations and other relevant factors. The final layout shall be approved by the Board.

19. Multi-family Dwelling Unit Affordable Housing Requirements.

(a) The Affordable housing development shall conform to Chapter 21, Article XIII, Affordable Housing for very low-, low- and moderate-income units.

(b) Fifteen percent (15%) of age-restricted multi-family rental units shall be affordable age-restricted multi-family rental units, and twenty percent (20%) of age-restricted multi-family for-sale units shall be affordable age-restricted multi-family for-sale units.

(c) The Affordable Units shall be provided in accordance with the schedule set forth in N.J.A.C. 5:93-5.6(d) and in accordance with all other applicable New Jersey regulations and statutes governing the construction, delivery, marketing, tenant qualification, tenant placement, administration, and maintenance of affordable units for inclusionary development. Certificates of occupancy shall be issued in accordance with the schedule provided at N.J.A.C. 5:93-5.6(d) to achieve compliance with this requirement.

(d) Term of Affordable Units: In accordance with N.J.A.C. 5:80-26.1 et. seq., and in accordance with the voluntary agreement of the owner of the Westgate Drive property which, in part, induced the Township to re-zone that property to an inclusionary low and moderate income housing site, with other uses permitted, the period within which the Affordable Units shall be restricted to low and moderate income households shall be an initial 30-year term beginning on the date of issuance of a certificate of occupancy for each set-aside unit (the "initial 30-year term"), followed by a second 30-year term (the "second 30-year term") which, however, the Township shall have the option of canceling. In the event that the Township does not provide written notice of cancellation of the second 30-year term prior to the conclusion of the initial 30-year term, the second 30-year term shall begin running automatically at the conclusion of the initial 30-year term. The Township shall be entitled to credits for the Affordable Units as may be allowed by then-applicable law. The Township will retain any rights it has under N.J.A.C. 5:80-26.1 et. seq. (Uniform Housing Affordability Controls "U.H.A.C.") to continue to maintain affordability controls on the Westgate Drive site.

(e) Income Distribution Requirements: The affordable dwelling units shall be split between very low-, low-, and moderate-income units as those terms are defined in N.J.S.A. 52:27D-304 and the U.H.A.C. A minimum of fifty percent (50%) of the affordable housing units shall be affordable to

low-income households. At least thirteen percent (13%) of the affordable units shall be very low-income units. Thirteen percent (13%) of the affordable units that shall be very low-income units shall count toward the total of all low-income units required. Not more than fifty percent (50%) of the affordable housing units shall be available as moderate-income housing units.

(f) Bedroom mix: At a minimum, the number of bedrooms shall equal the number of age-restricted low- and moderate-income units within the affordable development. The standard may be met by creating all one-bedroom units or by creating a two-bedroom unit for each efficiency unit.

(g) Other Affordable Housing Unit Requirements. (1) The Developer will comply with all applicable requirements of UHAC and the Township's Affordable Housing Ordinance, including, but not limited to:

(1) affirmative marketing requirements; and (2) tenant qualification, screening and placement requirements, including annual income qualification of tenants, which shall be reported on an annual basis to the Township's Administrative Agent and affordable housing liaison.

(2) The Developer may, in its sole discretion, choose to serve as the Administrative Agent for the affordable units. If the Developer does not elect to serve as the Administrative Agent for the affordable units, the Developer shall contract with either (1) a qualified and experienced third-party Administrative Agent, or (2) the Township's Administrative Agent, for administration of the affordable units. The developer shall pay all costs for administration of the affordable units, including annual reporting to the Township and providing information and documentation that may be needed by the Township for affordable housing annual reporting obligations. The Developer shall pay the cost for all administrative and recording of Deed Restrictions associated with the affordable housing units.

(3) Whether the Developer acts as the Administrative Agent or contracts with the Township's Administrative Agent or another qualified Administrative Agent, the Developer shall agree to provide, within thirty (30) days after written notice, detailed information reasonably requested by the Township or the Township's Administrative Agent concerning the Developer's compliance with the U.H.A.C., the Township's Affordable Housing Ordinance, the Township's Amended Affordable Housing Plan, and any applicable Court orders (including the Township's JOR Order for the Third Round and subsequent Rounds of affordable housing obligations), and all applicable laws and regulations.

(4) In all respects, the Developer shall comply with the requirements of the NJ Fair Housing Act, the Uniform Housing and Affordability Controls, Bernards Township's affordable housing ordinance and all other applicable law pertaining to occupancy and administration of the affordable housing units.

(5) The affordable housing units shall be interspersed among all buildings and floors of the market-rate multi-family units such that the affordable housing units are indistinguishable from the market-rate housing units.

(6) The developer shall provide floor plans identifying the location of all affordable units with respect to bedroom type and affordability classification (i.e., very low-, low- and moderate-income units), and shall include the square footage of each affordable unit provided.

20. Subdivision of lots. The subdivision of land within the Westgate Village Mixed Use Senior Overlay Zone for the purpose of financing, property management, conveyance or creation of fee simple lots shall be permitted by the Board, notwithstanding that after subdivision the individual lots and improvements thereon may not comply with all requirements of this chapter, provided that the pre-subdivision lot remains in compliance with the site plan approved by the Board. Any subdivision shall be subject to the Board conditioning final subdivision approval upon submission by the applicant and approval by the Township Attorney, of a declaration of covenants and restrictions or other suitable instrument setting forth the mechanisms by which and providing adequate assurances dealing with items, including but not limited to access, security, outside cleaning and other routine external maintenance, external repainting, maintenance

of the common open space, garbage collection, snow removal and other appropriate items that are to be provided for the development.

[Figure Z, referenced in § 21-10.5.c.18 above, is attached]

The Township Clerk is directed to give notice at least ten days prior to hearing on the adoption of this ordinance to the Somerset County Planning Board and to all other persons entitled thereto pursuant to N.J.S. 40:55D-15 and N.J.S. 40:55D-63 (if required). Upon the adoption of this ordinance after public hearing thereon, the Township Clerk is further directed to publish notice of the passage thereof and to file a copy of the ordinance as finally adopted with the Somerset County Planning Board as required by N.J.S. 40:55D-16. The Clerk shall also forthwith transmit a copy of this ordinance after final passage to the Township Tax Assessor as required by N.J.S. 40:49-2.1.

Ordinance #2542 - An Ordinance to Amend the Revised General Ordinances of the Township of Bernards, Section 2-7 entitled "Police Department" of the Bernards Township General Ordinances to add Subsection 2-7.16 entitled "Outside Employment of Off-Duty Police Officers" – Public Hearing

The clerk read the ordinance by title and the mayor opened the public hearing. There were no comments and the hearing was closed.

Motion by Fields, second by Asay, that Ordinance #2542 be adopted and advertised as required by law.

Roll Call:

Aye: Asay, Baumann, Fields, McNally

Nay:

Abstain:

Motion carried.

WHEREAS, the Township of Bernards (the "Township") has permitted private contractors to retain the services of off-duty police officers to provide police officer services; and

WHEREAS, in order to ensure that the Township is paid for these services, and that assignments to outside contractors do not conflict with the needs of the Township, it is appropriate to establish hourly rates and procedures to be followed by private contractors and the Bernards Township Police Department,

NOW THEREFORE BE IT ORDAINED, by the Township Committee of the Township of Bernards in the County of Somerset that Chapter 2, "Administration," Section 2 "Outside Employment of Off-Duty Police Officers" of the Revised General Ordinances of the Township of Bernards is hereby amended: (new text is in double underline; deletions are stricken):

§ 2-7.16. Outside Employment of Off-Duty Police Officers.

****Subsection a through e – NO CHANGE IN TEXT****

f. Rates for off-duty police services are:

1. The standard rate of pay for Off Duty Police Services is time-and-one-half. The base flat rate of pay shall be calculated annually as time-and-one-half rate of Sergeant's maximum attainable pensionable rate for that year. All personnel above the rank of Sergeant on 12/31/2023 shall have their higher rate grandfathered without annual increase. Should the flat rate become higher than an employee's grandfathered rate, the employee shall be transitioned to the flat rate.
2. Bernards Twp. PBA 357 reserves the right to negotiate alternate flat rates of pay as needed for recurring jobs with outside vendors, to include public and private schools, the Township of Bernards and other organizations or corporations.
3. Such alternate flat rates of pay shall be reviewed annually by PBA 357 and be communicated to the Township no later than one week following the second PBA meeting of the calendar year.
4. Bernards Twp. PBA 357 reserves the right to appoint a designee from the membership to negotiate flat rates with outside vendors for recurring jobs that are not anticipated during the second PBA meeting of the calendar year.

In addition to the amounts noted above, an Administrative Fee of 15% of gross wages paid will be charged to the contractor. The failure of a contractor to contact the Police Department at least two hours in advance of the start of an assignment to cancel the request for off-duty police services will result in a four-hour charge to the contractor. The Bernards Township Board of Education shall be exempt from this Administrative Fee.

****Subsection g – NO CHANGE IN TEXT****

h. When a Township police vehicle is available and being utilized as an “Active” traffic control device the fee charged for use within the Township is \$100 flat fee for the first 4 hours or any portion thereof; the fee charged for use outside of the Township is \$150 flat fee for the first 4 hours or any portion thereof. Regardless of geographic location, jobs in excess of 4 hours will incur an additional vehicle fee of \$15 per hour or portion thereof. \$50 flat fee per day or any portion thereof; the fee charged for use outside of the Township is \$100 flat fee per day or any portion thereof. The Bernards Township Board of Education, the Township of Bernards and not-for-profit organizations located in Bernards Township are exempt from the fees charged for use of police vehicles.

****Subsection i – NO CHANGE IN TEXT****

Each section of this ordinance and every subsection hereof shall be deemed independent, separate and distinct from all other sections, and the holding of any section or a part hereof to be unconstitutional, void, or ineffective for any cause shall not be deemed to affect the validity or constitutionality of any section or part hereof. All ordinances, codes or parts thereof that are inconsistent with this ordinance are repealed or otherwise modified. The ordinance is effective upon passage. It will be published in accordance with NJSA 40:49-2d.

NEW BUSINESS

Consent Agenda

The items listed within the consent agenda portion of the meeting have been referred to the Township Committee for reading and study, are posted on the agenda on the website, are considered routine and will be enacted by one motion of the Township Committee with no separate discussion. If separate discussion is required, the item may be removed from the agenda by township committee action and placed on the regular agenda under new business.

Motion by Baumann, second by Asay, that the Consent Agenda be approved.

Roll Call:

Aye: Asay, Baumann, Fields, McNally

Nay:

Abstain:

Motion carried.

****Begin Consent Agenda****

Resolution #2023-0498 - Approval of the Bill List Dated 12/28/2023

BE IT RESOLVED, that the bill list dated 12/28/2023 be audited, and if found correct, be paid.

Check #	Check Date	Vendor	Amount Paid	Reconciled/Void	Ref Num
138457	12/28/23	90038 FORGIONE, LUCY A.	161.35		1734 Direct Deposit
138458	12/28/23	90203 HURST, CHRISTOPHER	286.38		1734 Direct Deposit
138459	12/28/23	90239 SCHLEY, DAVID L	53.30		1734 Direct Deposit
138460	12/28/23	90279 NEIL, DAWN	30.00		1734 Direct Deposit
138461	12/28/23	90327 MCKNIGHT, ALEX	35.00		1734 Direct Deposit
138462	12/28/23	90342 BAHLMAN, RICH	90.00		1734 Direct Deposit
138463	12/28/23	90395 NERI, MARK	464.02		1734 Direct Deposit
138464	12/28/23	90518 LONG, SUSAN	15.00		1734 Direct Deposit
138465	12/28/23	90522 BARBER, JACQUELINE	29.94		1734 Direct Deposit
138466	12/28/23	90525 BAXTER, CHRISTOPHER	313.08		1734 Direct Deposit
138467	12/28/23	90647 KESSELMAYER, EMILY	830.00		1734 Direct Deposit
138468	12/28/23	90690 KIEFFER, CHRISTINE	100.00		1734 Direct Deposit
138469	12/28/23	90702 GADDISH, WILLIAM	12.00		1734 Direct Deposit
138470	12/28/23	90706 JEFFERYS, M. NICOLE	11.29		1734 Direct Deposit
138471	12/28/23	90734 COSTA, MICHAEL	75.00		1734 Direct Deposit
138472	12/28/23	90749 VAUGHN, THERESA	30.00		1734 Direct Deposit
138473	12/28/23	A0044 APPROVED FIRE PROTECTION CO.	912.06		1734 Direct Deposit
138474	12/28/23	A0168 ALLIED OIL COMPANY, LLC	12,490.02		1734 Direct Deposit
138475	12/28/23	A0398 STERLING TALENT SOLUTIONS	299.18		1734 Direct Deposit
138476	12/28/23	A0425 ATLANTIC TACTICAL	6,939.84		1734 Direct Deposit
138477	12/28/23	A0453 AMAZON.COM	2,715.65		1734 Direct Deposit
138478	12/28/23	A0611 AMERICAN WEAR, INC	967.16		1734 Direct Deposit
138479	12/28/23	B0203 DIFRANCESCO BATEMAN, PC	8,862.53		1734 Direct Deposit
138480	12/28/23	B0581 BUY WISE AUTO PARTS	1,325.69		1734 Direct Deposit
138481	12/28/23	E0224 EXCELLENT BUILDING SERVICES	2,745.00		1734 Direct Deposit
138482	12/28/23	E0327 ELITE VEHICLE SOLUTIONS	51,202.35		1734 Direct Deposit
138483	12/28/23	G0066 GRAINGER INC	76.00		1734 Direct Deposit
138484	12/28/23	G0201 GENERAL CODE LLC	1,790.00		1734 Direct Deposit

138485	12/28/23	G0694	GREENMAN-PEDERSEN, INC.	3,661.15	1734	Direct Deposit
138486	12/28/23	L0181	LAND'S END, INC.	535.55	1734	Direct Deposit
138487	12/28/23	M0692	MUSCO SPORTS LIGHTING, LLC	950.00	1734	Direct Deposit
138488	12/28/23	M0823	MOOSEWOOD TREE SERVICE	14,000.00	1734	Direct Deposit
138489	12/28/23	M1038	MEYERFIRE, LLC	365.00	1734	Direct Deposit
138490	12/28/23	O0164	ODP BUSINESS SOLUTIONS LLC	65.97	1734	Direct Deposit
138491	12/28/23	P0706	PARTS AUTHORITY LLC	197.72	1734	Direct Deposit
138492	12/28/23	R0824	REPUBLIC SERVICES OF NJ LLC	1,330.00	1734	Direct Deposit
138493	12/28/23	S0135	CJHRC-CENTRAL JERSEY HOUSING	8,218.02	1734	Direct Deposit
138494	12/28/23	S0443	STAPLES ADVANTAGE	567.39	1734	Direct Deposit
138495	12/28/23	S0741	SUBURBAN CONSULTING ENGINEERS	15,768.12	1734	Direct Deposit
138496	12/28/23	S1176	STONEFIELD ENG. & DESIGNS LLC	14,850.00	1734	Direct Deposit
138497	12/28/23	S1177	SAL ELECTRIC CO., INC.	1,430.00	1734	Direct Deposit
138498	12/28/23	T0024	TRIUS OF NJ INC	15.00	1734	Direct Deposit
138499	12/28/23	T0066	CENGAGE LEARNING CREDIT SVCS	134.21	1734	Direct Deposit
138500	12/28/23	T0192	TURN OUT UNIFORMS INC	1,070.88	1734	Direct Deposit
138501	12/28/23	U0001	UNITEMP MECHANICAL DEGREES LLC	3,599.41	1734	Direct Deposit
138502	12/28/23	U0056	U.S. MUNICIPAL SUPPLY, INC.	597.00	1734	Direct Deposit
138503	12/28/23	U0074	ULINE	122.10	1734	Direct Deposit
138504	12/28/23	W0409	WEATHERTITE SOLUTIONS	1,250.00	1734	Direct Deposit
138505	12/28/23	A0250	AMBASSADOR MEDICAL SERVICES	226.00	1735	
138506	12/28/23	A0270	ATHLETICA INC.	1,055.00	1735	
138507	12/28/23	A0381	BLACK LAGOON	2,975.00	1735	
138508	12/28/23	A0570	ALPHA YOUTH SPORTS, INC.	1,550.00	1735	
138509	12/28/23	A0716	ACB SERVICES INC	2,660.00	1735	
138510	12/28/23	B0001	BAKER & TAYLOR, INC.	2,234.74	1735	
138511	12/28/23	B0017	BRIDGEWATER RESOURCES, INC.	1,528.85	1735	
138512	12/28/23	B0026	BERNARDS TOWNSHIP CURRENT	113,611.89	1735	
138513	12/28/23	B0034	BERNARDS TOWNSHIP PAYROLL ACCT	580,399.60	1735	
138514	12/28/23	B0098	BERNARDS TOWNSHIP (RECREATION)	1,373.05	1735	
138515	12/28/23	B0875	BARLASKAR, TASMEYIA OR FERDOUS	100.00	1735	
138516	12/28/23	C0024	GANNETT NEW JERSEY NEWSPAPERS	121.68	1735	
138517	12/28/23	C0024	GANNETT NEW JERSEY NEWSPAPERS	13.65	1735	
138518	12/28/23	C0024	GANNETT NEW JERSEY NEWSPAPERS	16.77	1735	
138519	12/28/23	C0037	CLERK'S PETTY CASH	41.00	1735	
138520	12/28/23	C0083	CDW GOVERNMENT, INC.	3,052.50	1735	
138521	12/28/23	C0134	COUNTRYSIDE MANOR CONDO ASSOC.	7,634.88	1735	
138522	12/28/23	C0773	COMMUNITY HOME CARE	659.00	1735	
138523	12/28/23	C0910	CREEGAN, KATE	50.00	1735	
138524	12/28/23	C0914	COLLABORATIVE SUMMER LIBRARY	281.56	1735	
138525	12/28/23	D0319	DRAEGER, INC	224.65	1735	
138526	12/28/23	D0788	D.H. CATERING	2,466.18	1735	
138527	12/28/23	D0860	DENTE, ANTHONY	105.00	1735	
138528	12/28/23	E0205	EAGLE POINT GUN SHOP	8,760.69	1735	
138529	12/28/23	F0047	FULLERTON FORD	358.07	1735	
138530	12/28/23	F0148	FAIRFIELD MAINTENANCE INC	2,856.00	1735	
138531	12/28/23	F0158	FLEMINGTON DEPARTMENT STORE	528.50	1735	
138532	12/28/23	F0326	FX AUTOMOTIVE LLC	113.54	1735	
138533	12/28/23	F0397	FERRIER, CARRIE OR GRAHAM	190.00	1735	
138534	12/28/23	G0098	JCP&L	15,654.55	1735	
138535	12/28/23	H0235	HOOVER TRUCK CENTERS	432.56	1735	
138536	12/28/23	H0246	HOME DEPOT CREDIT SERVICES	809.29	1735	
138537	12/28/23	I0159	IMPERIAL DADE	1,638.06	1735	
138538	12/28/23	J0015	JESCO, INC.	4,774.65	1735	
138539	12/28/23	J0220	JCW , INC. D/B/A SPORTCARE	1,800.00	1735	
138540	12/28/23	J0250	JACKSON, NATASHA	50.00	1735	
138541	12/28/23	K0259	KONICA MINOLTA PREMIER FINANCE	108.92	1735	
138542	12/28/23	K0331	KONICA MINOLTA PREMIER FINANCE	1,291.48	1735	
138543	12/28/23	K0428	KANIA, MARYANNE	175.00	1735	
138544	12/28/23	L0098	LINDERS FRENCH CLEANERS	30.00	1735	
138545	12/28/23	L0116	LAWMEN SUPPLY	1,269.76	1735	
138546	12/28/23	L0266	LONG HILL TOWNSHIP	277.20	1735	
138547	12/28/23	L0372	LIFESAVERS, INC	726.42	1735	
138548	12/28/23	M0006	MGL PRINTING SOLUTIONS	804.50	1735	
138549	12/28/23	M0518	KONICA MINOLTA BUSINESS SOL.	5.71	1735	
138550	12/28/23	M0518	KONICA MINOLTA BUSINESS SOL.	16.98	1735	
138551	12/28/23	M0850	MIDATLANTIC PESTICIDE	425.00	1735	
138552	12/28/23	M0899	MR JOHN	65.00	1735	
138553	12/28/23	M0927	MARINO, JENA OR VINCENT	100.00	1735	
138554	12/28/23	M1040	MORRIS, MARGORIE OR JAMES	100.00	1735	
138555	12/28/23	N0006	NEW JERSEY AMERICAN WATER CO.	3,368.88	1735	
138556	12/28/23	N0017	NJ STATE LEAGUE OF MUNICIPAL.	205.00	1735	
138557	12/28/23	N0053	NJ UNEMPLOYMENT COMP. FUND	22,537.66	1735	
138558	12/28/23	N0521	NIELSEN FLEET INC	655.60	1735	
138559	12/28/23	O0003	ORIENTAL TRADING COMPANY, INC.	531.82	1735	
138560	12/28/23	P0014	PUBLIC SERVICE ELEC. & GAS CO	4,475.92	1735	
138561	12/28/23	P0251	PANASONIC/HEARTLAND SVCS, INC.	283.00	1735	
138562	12/28/23	P0525	POWER PLACE, INC.	55.20	1735	
138563	12/28/23	P0538	PROVIDENT LIFE & ACCIDENT	60.04	1735	
138564	12/28/23	P0602	LINDE GAS & EQUIPMENT INC	54.97	1735	
138565	12/28/23	P0758	PRODIGY ATHLETICS	362.50	1735	
138566	12/28/23	Q0002	CINTAS CORP. - #062	760.54	1735	
138567	12/28/23	Q0032	QUINN, THOMAS J.	487.50	1735	
138568	12/28/23	R0005	RECORDER PUBLISHING CO., INC	11.73	1735	
138569	12/28/23	R0005	RECORDER PUBLISHING CO., INC	33.15	1735	
138570	12/28/23	R0005	RECORDER PUBLISHING CO., INC	23.97	1735	
138571	12/28/23	S0011	SHERWIN-WILLIAMS COMPANY	429.00	1735	
138572	12/28/23	S0101	STICKEL, KOENIG, SULLIVAN&DRILL	102.50	1735	
138573	12/28/23	S0185	SUBURBAN JOINT INSURANCE FUND	188,449.75	1735	
138574	12/28/23	S0344	SUMMIT SUPPLY CORP OF COLORADO	518.10	1735	
138575	12/28/23	S0415	SPORTWORLD	5,890.00	1735	
138576	12/28/23	S0822	SIGNS AND SAFETY DEVICES, LLC	540.50	1735	
138577	12/28/23	S1170	SAMUEL STOTHOFF CO., INC.	3,200.00	1735	
138578	12/28/23	S1182	SOYSOUVANH,V OR KATAYANA,C	100.00	1735	
138579	12/28/23	S1218	SKOPYE, LLC	24,500.00	1735	
138580	12/28/23	S1227	SMYRNA GROUP, LLC	330.08	1735	
138581	12/28/23	T0214	TELE-MEASUREMENTS, INC.	1,712.50	1735	
138582	12/28/23	T0227	T.R.M. TRANSMISSIONS INC.	3,496.71	1735	
138583	12/28/23	T0292	T-MOBILE USA, INC.	50.00	1735	
138584	12/28/23	T0521	THE UPS STORE-BERNARDSVILLE	33.26	1735	
138585	12/28/23	U0131	UGI ENERGY SERVICES, LLC	5,030.85	1735	
138586	12/28/23	V0037	VILLAGE SUPERMARKET, INC.	63.04	1735	
138587	12/28/23	V0056	VERIZON WIRELESS	1,542.62	1735	
138588	12/28/23	V0058	VERIZON	42.48	1735	

TOWNSHIP COMMITTEE MINUTES

12/28/2023

138589	12/28/23	V0058	VERIZON	38.01	1735
138590	12/28/23	V0058	VERIZON	260.26	1735
138591	12/28/23	V0084	VERIZON	188.99	1735
138592	12/28/23	V0084	VERIZON	189.99	1735
138593	12/28/23	V0084	VERIZON	289.99	1735
138594	12/28/23	V0177	VERIZON	338.71	1735
138595	12/28/23	W0016	WARRENVILLE TRUE VALUE	126.29	1735
138596	12/28/23	X0005	XTEL COMMUNICATION	526.80	1735

Report Totals	Paid	Void	Amount Paid	Amount Void
Checks:	92	0	1,037,640.79	0.00
Direct Deposit:	48	0	161,589.36	0.00
Total:	140	0	1,199,230.15	0.00

Totals by Year-Fund	Fund	Budget Total	Revenue Total	G/L Total	Total
CURRENT FUND	2-01	16,395.57	0.00	0.00	16,395.57
GOLF COURSE UTILITY	2-26	13,109.00	0.00	0.00	13,109.00
Year Total:		29,504.57	0.00	0.00	29,504.57
CURRENT FUND	3-01	835,193.01	0.00	0.00	835,193.01
DOG FUND	3-12	25,785.43	0.00	0.00	25,785.43
GOLF COURSE UTILITY	3-26	681.83	0.00	0.00	681.83
Year Total:		861,660.27	0.00	0.00	861,660.27
CAPITAL FUND	C-04	176,944.11	0.00	0.00	176,944.11
PUBLIC GRANTS	G-02	53,733.39	0.00	0.00	53,733.39
TRUST FUNDS	T-13	76,442.16	0.00	0.00	76,442.16
PROJECT		945.65	0.00	0.00	945.65
Total Of All Funds:		1,199,230.15	0.00	0.00	1,199,230.15

Resolution #2023-0449 - In Recognition of Service to Bernards Township Chris Hurst – Emergency Management Council 24 years

WHEREAS, Chris Hurst has given innumerable hours to our local government and to the citizens of Bernards Township; and

WHEREAS, Chris has rendered inestimable services as a member of the Emergency Management Council from 1999 to 2023.

NOW THEREFORE BE IT RESOLVED, by the Township Committee of the Township of Bernards, that in recognition of his years of faithful service, the Bernards Township Committee extends to Chris Hurst deep appreciation and sincere gratitude on behalf of all the residents and officials of Bernards Township; and

NOW THEREFORE BE IT FURTHER RESOLVED, that this citation of his service be inscribed at length in the minutes of this Township meeting, held on the 28th day of December, 2023, and that a suitable copy thereof, signed by the members of the Township Committee and attested by the Municipal Clerk, with the corporate seal of the Township thereunto affixed, be presented to Chris Hurst.

Resolution #2023-0469 - Appointment of 2024 Public Defender – Bedminster Township, Borough of Peapack and Gladstone, Borough of Bernardsville, and Bernards Township Shared Municipal Court Awarded to Scott C. Mitzner, Esq., of the Firm Mitzner & Mitzner, P.A.

WHEREAS, there is a need for the appointment of a Public Defender for the Bedminster Township, Borough of Peapack and Gladstone, Borough of Bernardsville, and Bernards Township Shared Municipal Court in 2024; and

WHEREAS, the Shared Municipal Court Services Advisory Committee recommends the following appointment to the position of Public Defender to the Shared Court in 2024.

NOW THEREFORE, BE IT RESOLVED, that the Mayor and Township Committee do hereby approve the appointment of the following to perform professional services for the Bedminster Township, Borough of Peapack and Gladstone, Borough of Bernardsville, Township of Bernards Shared Municipal Court in 2024:

<u>NAME</u>	<u>POSITION</u>
Scott C. Mitzner, Esq. Mitzner & Mitzner, P.A. 786 Mountain Blvd., #101a Watchung, NJ 07069	Public Defender

NOW THEREFORE, BE IT FURTHER RESOLVED that the appointment of Mr. Mitzner is expressly contingent upon the continuation of a shared court agreement between Bedminster Township, Borough of Peapack-Gladstone, Borough of Bernardsville and Bernards Township and the appointment of Mr. Mitzner as Public Defender by the Borough of Peapack-Gladstone, Bedminster Township, and Borough of Bernardsville.

[Resolution #2023-0470](#) - *Appointment of 2024 Municipal Prosecutor – Bedminster Township, Borough of Peapack and Gladstone, Borough of Bernardsville, and Bernards Township Shared Municipal Court Awarded to Stephen O. Davis, Esq., of the firm DiFrancesco Bateman, Kunzman, Davis, Lehrer & Flaum, P.C.*

WHEREAS, there is a need for the appointment of a Municipal Prosecutor for the Bedminster Township, Borough of Peapack and Gladstone, Borough of Bernardsville, and Bernards Township Shared Municipal Court; and

WHEREAS, the Shared Municipal Court Services Advisory Committee recommends the following appointment to the position of Municipal Prosecutor to the Shared Court for 2024.

NOW THEREFORE, BE IT RESOLVED, that the Mayor and Township Committee do hereby approve the appointment of the following to perform professional services for the Bedminster Township, Borough of Peapack and Gladstone, Borough of Bernardsville, and Bernards Township Shared Municipal Court:

<u>NAME</u>	<u>POSITION</u>
Stephen O. Davis, Esq. DiFrancesco, Bateman, Kunzman, Davis, Lehrer & Flaum, P.C. 15 Mountain Boulevard Warren, NJ 07059	Municipal Prosecutor

NOW THEREFORE, BE IT FURTHER RESOLVED that the appointment of Mr. Davis is expressly contingent upon the continuation of a shared court agreement between Bedminster Township, Borough of Peapack-Gladstone, Borough of Bernardsville, and Bernards Township and the appointment of Mr. Davis as Municipal Prosecutor by the Borough of Peapack-Gladstone, Bedminster Township, and Borough of Bernardsville.

[Resolution #2023-0482](#) - *2024 Fee Schedule for Pleasant Valley Pool*

WHEREAS, The Director of Parks & Recreation and the Pool Commission have recommended that fees be adopted for the 2024 pool season,

NOW THEREFORE BE IT RESOLVED, by the Township Committee of the Township of Bernards that the following will constitute the fees for membership in, and use of, the municipal pool for 2024:

Fee Type	2024 Fee
RESIDENT FAMILY MEMBERSHIP	
Early Rate – Through March 31	\$ 495.00
Regular Rate – Beginning April 1	\$ 585.00
RESIDENT TWO PERSON HOUSEHOLD MEMBERSHIP	
Early Rate – Through March 31	\$ 395.00
Regular Rate – Beginning April 1	\$ 485.00
RESIDENT SINGLE MEMBERSHIP	
Early Rate – Through March 31	\$ 250.00
Regular Rate – Beginning April 1	\$ 340.00
RESIDENT SENIOR CITIZEN MEMBERSHIP (60+ years old)	
Early Rate – Through March 31	\$ 110.00
Regular Rate – Beginning April 1	\$ 135.00
RESIDENT INITIATION FEES (Paid First Membership Year in addition to membership fee)	
Family or Two Person Membership Initiation Fee	\$ 350.00
Includes an additional 3 complimentary guest visit credits	
Single Membership Initiation Fee	\$ 175.00

Includes 1 additional complimentary guest visit credit		
NON-RESIDENT FAMILY MEMBERSHIP		
Early Rate – Through March 31	\$	795.00
Regular Rate – Beginning April 1	\$	895.00
NON-RESIDENT SINGLE MEMBERSHIP		
Early Rate – Through March 31	\$	395.00
Regular Rate – Beginning April 1	\$	460.00

UPGRADE OF SINGLE MEMBERSHIP		
Initiation Fee (<i>Plus appropriate membership fee</i>)		\$150/\$175
Includes an additional 2 complimentary guest visit credits		
LAPSED MEMBERSHIP RE-REGISTRATION ₁		
Family or 2-Person Membership Re-Registration	\$	150.00
Includes an additional 3 complimentary guest visit credits		
Single Membership Re-Registration	\$	75.00
Includes 1 additional complimentary guest visit credit		
FAMILY SPONSORED BABYSITTER/NANNY PASS	\$	215.00
PRORATED MEMBERSHIP FEES, VALID 8/1 TO CLOSING DAY		
New Resident Family Membership, Including Initiation	\$	585.00
Returning Resident Family Membership, Including Re-Registration	\$	385.00
New Resident Two Person Membership, Including Initiation	\$	485.00
Returning Resident Two Person Membership, Including Re-Registration	\$	285.00
New Resident Single Membership, Including Initiation	\$	340.00
Returning Resident Single Membership, Including Re-Registration	\$	240.00
Non-Resident Family Membership	\$	645.00
Non-Resident Single Membership	\$	330.00

Fee Type	2024 Fee
DAILY GUEST RATES	
2 Complimentary Guest Passes Included with Membership if paid by March 31, Valid Any Operating Day	\$ -
Weekday - All Guests, Ages 3 & Up	\$ 12.00
Weekend/Holiday - All Guests, Ages 3 & Up	\$ 15.00
Guests 2 Years & Younger	FREE
Any Day After 4PM - All Guests, Ages 3 & Up	\$ 8.00
PRE-PAID DISCOUNTED GUEST VISIT CREDITS	
10 Visits, Guests 3 & Up, Valid Any Day During Season	
Early Rate – Through March 31	\$ 110.00
Regular Rate – Beginning April 1	\$ 120.00
SWIM TEAM	
Swim Team & Pre Team - per child	\$ 110.00
Swim Team – per PVP Lifeguard	\$ 20.00
SWIM DIAPER	\$ 10.00
PHOTO I.D. REPLACEMENT	
Per ID for 1 - 2 IDs	\$ 10.00

3 or More IDs, Same Family, Reprinted Same Time	\$ 30.00
No Charge for ID Reprints with Renewal through 2/29	\$ -

NOTES REGARDING FEES:	
1.	Re-Registration Fees are charged when those who previously held membership within the last 10 years, have paid the initiation fee and wish to re-join the pool after a lapse in membership. All current membership eligibility qualifications must be met.
2.	Active Fire Company & First Aid Squad Volunteers are eligible to receive complimentary guest visits credits in an amount equal to five household visits to the pool each season.
3.	Fees will not be waived under any circumstances for other than those reasons listed above.
4.	Full refunds for membership are issued only if the Department is notified in writing prior to opening day for the season. Once the pool has opened a 50% refund of membership fees will be issued only if the Department is notified in writing prior to the start of full time hours. Refund dates for swim lesson and swim team programs will be noted on their respective registration forms. All Department policies and procedures regarding refunds apply to Pleasant Valley Pool fees.

Resolution #2023-0488 - 2024 Fee Schedule & Policies for Parks and Recreation

BE IT RESOLVED by the Township Committee of the Township of Bernards, in the County of Somerset, State of New Jersey, that the following Parks and Recreation Facility Fees and Policies for 2024 be approved:

2024 FACILITY RESERVATION FEES

<u>Facility</u>	<u>Resident Fee</u>	<u>Non-Resident Fee</u>	<u>Security Deposit</u>
ALLEN STREET GAZEBO <u>MAX CAPACITY:</u> 50	\$20 per hour	\$40 per hour	\$400
COMMUNITY CENTER Activity Room <u>MAX CAPACITY:</u> 35	\$25 per hour, 2 hour minimum	\$50 per hour, 2 hour minimum	\$400
COMMUNITY CENTER Recreation Room <u>MAX CAPACITY:</u> 50	\$40 per hour, 2 hour minimum	\$80 per hour, 2 hour minimum	\$400
DUNHAM PARK Picnic Shelter <u>MAX CAPACITY:</u> 150	By Group Size/Per Day 50 or less = \$75 51 – 75 = \$100 76 – 100 = \$125 101 – 150 = \$175	By Group Size/Per Day 50 or less = \$150 51 – 75 = \$200 76 – 100 = \$250 101 – 150 = \$350	\$400
DUNHAM PARK Indoor Pavilion <u>MAX CAPACITY:</u> 60	\$125 per 6 hour block 9AM – 3PM or 4PM – 10PM	\$250 per 6 hour block 9AM – 3PM or 4PM – 10PM	\$400
PLEASANT VALLEY PARK Warming Hut <u>MAX CAPACITY:</u> 50	\$50 per 4 hour block <i>For Non-Profit Groups</i> \$150 per month <i>For One 4hr. block per week</i>	\$100 per 4 hour block	\$400
PLEASANT VALLEY PARK Picnic Shelter <u>MAX CAPACITY:</u> 150	By Group Size/Per Day 50 or less = \$75 51 – 75 = \$100 76 – 100 = \$125 101 – 150 = \$175	By Group Size/Per Day 50 or less = \$150 51 – 75 = \$200 76 – 100 = \$250 101 – 150 = \$350	\$400
PLEASANT VALLEY PARK Pond Shelter <u>MAX CAPACITY:</u> 20	By Group Size/Per Day 20 or less = \$50	By Group Size/Per Day 20 or less = \$100	\$400
SOUTHARD PARK Picnic Shelter <u>MAX CAPACITY:</u> 75	By Group Size/Per Day 50 or less = \$75 51 – 75 = \$100	By Group Size/Per Day 50 or less = \$150 51 – 75 = \$200	\$400

**If reserving an indoor and outdoor facility for the same day/time/park, the total number of attendees may not exceed the capacity for the indoor facility.*

2024 ATHLETIC COURT AND FIELD USE RATES

TOWNSHIP COMMITTEE MINUTES

12/28/2023

Page 16 of 26

Fees are charged per field/court. All use associated with league play or with a sport official present requires a reservation by paid permit.

<u>Facility</u>	<u>Resident Fee</u>	<u>Non-Resident Fee</u>
Athletic Courts – Basketball, Bocce, Pickleball, Tennis, Volleyball MAX CAPACITY: 4 – 20	\$10 per hour	\$20 per hour
Grass Athletic Fields & Roller Rink MAX CAPACITY: 50	\$20 per hour	\$40 per hour
<i>Residents may reserve a tennis court, pickleball court or the roller rink for recreational play up to 7 days in advance at no charge.</i>		

Artificial Turf Fields MAX CAPACITY: 75 per field	Individual Resident Rented or Organization/Team Roster At Least 75% Residents	Individual Non-Resident Rented or Organization/Team Roster Less Than 75% Residents
March through December	\$55 per hour	\$80 per hour
January & February - (Snow will not be cleared)	\$25 per hour	\$45 per hour
Dates when Bernards Township Public Schools are in Session Sunrise – 5:30PM	\$25 per hour	\$45 per hour
Resident/Non-Resident turf rates apply to reservations using an individual's homeowner insurance. Groups using organization insurance who wish to receive the Resident turf rate must submit a team roster annually, including all player names and residential addresses to confirm at least 75% of team participants are Township residents.		

Athletic Field Lights - In addition to field reservation fee <i>Applies to Resident, Non-Resident and Commercial</i>	\$25 per hour
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FACILITY HOURS AVAILABLE FOR RENTAL Per Ordinance #2328

Facility	Hours Available
General Park Use, Gazebo/Shelters, Roller Rink, Unlit Athletic Courts and Unlit Athletic Fields	Sunrise – Sunset
Pleasant Valley Park Paddle Tennis Courts and the Southard Park Ice Skating Area	Sunrise – 11:00 PM
Mountain Park Lighted Athletic Fields	Sunrise – 10:00 PM
Pleasant Valley Park Warming Hut, Dunham Park Indoor Pavilion & Community Center Rooms	7:00 AM – 10:00 PM

2024 COMMERCIAL USE RATES

“Commercial Use” is defined as an activity not sponsored by the Township in which attendees are charged a fee and/or solicitation of a business or service is offered to the participants. Reservation must adhere to facility capacity restrictions and insurance is required.

<u>Facility</u>	<u>Commercial Fee</u>	<u>Security Deposit</u>
Athletic Courts & Roller Rink	\$50 per hour	N/A
Athletic Fields – Grass	\$50 per hour	N/A
Athletic Fields – Artificial Turf	\$110 per hour March – December \$80 per hour – January & February	N/A
Picnic Shelters	\$500 per day	\$400
Pleasant Valley Park Warming Hut	\$50 per hour, 2 hour minimum	\$400
Dunham Park Indoor Pavilion	\$500 per 6-hour block 9am – 3pm or 4pm – 10pm	\$400
Community Center Activity Room	\$75 per hour, 2 hour minimum	\$400
Community Center Recreation Room	\$100 per hour, 2 hour minimum	\$400
General Park Use (Pathways/Lawn Areas)	\$50 per hour	\$400

USE OF PARKS BY PROFESSIONAL PHOTOGRAPHERS

- Individuals hiring a professional photographer for the purpose of taking photos of themselves or their family in a park must obtain a permit in advance, pay the applicable resident or non-resident fee and provide private homeowners/renters insurance in accordance with the requirements for reservations. - Professional photographers utilizing a park to hold photo sessions for clients will be required to obtain a permit in advance, pay the applicable commercial use fee and provide organization insurance in accordance with the requirements for corporate reservations.			
<u>Resident Fee</u>	<u>Non-Resident Fee</u>	<u>Commercial Fee</u>	<u>Security Deposit</u>
\$20 per hour	\$40 per hour	\$50 per hour	N/A

FACILITY KEY PICK-UP & RETURN

Keys will be given to the renter when the deposit check is dropped off. All keys are to be returned by NOON the first business day following the rental. Renter will be charged a fee of \$25 per day, if keys are not returned by the second business day following the rental. Renter will be charged a fee of \$100 for each key reported lost. The \$400 security deposit check will be forfeited and cashed if keys are not returned after 5 business days.

INSURANCE REQUIREMENTS FOR ALL RESERVATIONS

Private Homeowners/Renters - Must supply evidence of insurance in the minimum amount of \$300,000 in General Liability coverage for each occurrence in the form of a Homeowners or Special Event Policy.

Corporate/Organization - Must supply a Certificate of Liability Insurance naming Bernards Township as an Additional Insured, with the minimum amount of \$1,000,000 in General Liability Coverage and the Certificate must state the date and location of the event.

LIQUOR PERMITS - FEES & INSURANCE REQUIREMENTS

Pursuant to Ordinance #2328, Subsection 3-16.2, no person or group shall bring into, possess, sell, buy, consume, or give away any alcoholic beverage in any municipal property within the Township of Bernards with the exception that a resident may obtain a permit for consumption of alcoholic beverages within a Township park in conjunction with a special event or private event after obtaining a permit as described in 10-1.6, at the following park facilities:

- Pleasant Valley Park, Dunham Park and Southard Park Picnic Shelters
- Pleasant Valley Park Warming Hut
- Dunham Park Indoor Pavilion

Liquor permits will be issued to Township residents only in conjunction with a facility rental. Residency is determined by the individual named as the renter on the park permit, not the location of the organization holding the insurance.

Insurance Requirements for Liquor Permits

Individuals - - Must supply evidence of insurance in the minimum amount of \$1,000,000 in General Liability coverage in the form of a Homeowners or Special Event Policy.

Organizations/Corporations - - Must supply a Certificate of Liability Insurance naming Bernards Township as an Additional Insured in the minimum amount of \$3,000,000 Liquor Liability each occurrence if applicant is in the business of manufacturing, distributing, selling, serving or furnishing alcoholic beverages or a Certificate of Insurance naming Bernards Township as the added insured in the minimum amount of \$3,000,000 Host Liquor Liability each occurrence if liquor will be present and applicant is not in the business of manufacturing, distributing, selling, serving or furnishing alcoholic beverages.

<u>LIQUOR PERMIT FEES</u>	Individuals - \$40
Fees are charged per date reserved.	Organizations/Corporations - \$150

FORFEIT OF SECURITY DEPOSIT

The Township reserves the right to inspect your event and request to see your facility use permit. If you are found to be serving/consuming alcohol without a liquor permit, you will be asked to cease immediately and will forfeit your security deposit. If the headcount of your event is found to be beyond what was indicated on your permit, you will be asked to end your event immediately and will forfeit your security deposit.

2024 EQUIPMENT KIT RENTAL RATES

Equipment Kits are available for rental by Township Residents Only.

<u>Equipment Kit</u>	<u>Rental Fee</u>	<u>Rental Period</u>	<u>Security Deposit</u>
Party, Picnic, Carnival Volleyball, Bocce, Cornhole	\$25/Rental Period	Friday at Noon – Monday at Noon Or Monday at Noon – Friday at Noon	\$400
Paddle Tennis, Pickleball, Disc Golf	\$25/Rental Period	Friday at Noon – Thursday at Noon	\$400
Kits Rentals are not refundable once paid. Kits returned past noon on their return date will be charged a late fee of \$25.			
EQUIPMENT KIT REPLACEMENT FEES <i>Replacement fees are for lost or damaged items. P&R reserves the right to substitute items in kits if necessary.</i>			

Entire Lost Kit Picnic Kit: \$185.00 Party Kit: \$275.00 Volleyball Kit: \$350.00 Paddle Tennis Kit: \$150.00 Pickleball Kit: \$150.00 Disc Golf Kit: \$75.00 Carnival Game Kit: \$250.00 Cornhole or Bocce Any item missing: \$50.00 Entire Kit: \$150.00	Individual Item Replacement Basketball: \$20.00 Bean Bag Game Board: \$45.00 Bean Bag: \$5.00 each Egg on Spoon Game: \$20.00 4" Foam/Rubber Ball: \$3.00 each Frisbee: \$5.00 Golf Disc: \$8.00 Horseshoe Set: \$30.00 Knock Down Cans Game: \$35.00 Koosh Ball: \$5.00 Koosh Paddle: \$20.00 Magnetic Fishing Set: \$40.00 Milk Bottle Toss Game: \$30.00 Nerf Football: \$15.00 Nerf Soccerball: \$15.00 Pickle/Tennis Paddle: \$25.00	Parachute: \$50.00 Pickle/Paddle Ball: \$12.00 Playground Ball: \$10.00 Bucket/Container: \$35.00 Potato Sack: \$4.00 Prize Wheel: \$45.00 Relay Cone: \$3.00 Ring Toss Game: \$35.00 Rubber Base Set: \$20.00 Softball Bat: \$25.00 Softball: \$8.00 Tug of War Rope: \$25.00 Twister: \$20.00 Volleyball: \$25.00 Wiffle Ball Bat: \$6.00 Wiffle Ball: \$3.00	Volleyball Net System Net: \$60.00 Stakes: \$10.00 Guides: \$10.00 Posts: \$200.00
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GENERAL PARK USE FOR SPECIAL EVENTS HOSTED BY CERTIFIED NON-PROFIT AGENCIES

Non-Profit or Not for Profit agencies may reserve park facilities for various special events, open to the public, including but not limited to:

5K Races/Walks, Fundraisers, Exhibitions, Festivals, etc. Events are subject to the approval of the Department of Parks and Recreation

and must comply with all Department policies and established Township ordinances.

Additionally, a Special Event Application may be required by the Municipal Clerk.

<u>Headcount</u>	<u>Resident Representative</u>	<u>Non-Resident Representative</u>	<u>Security Deposit</u>
0-100 Persons	\$125	\$225	\$400
101-200 Persons	\$250	\$375	\$400
201-300 Persons	\$350	\$475	\$400
301-400 Persons	\$475	\$600	\$400
401+ Persons	\$600	\$750	\$400

Headcount is to include all participants, volunteers, spectators and event organizers.

Max capacity will vary by park, facility, date, time of day, etc.

The Parks & Recreation Department has the authority to limit the maximum headcount of an event based on the parking availability, restroom capacity, scheduled activities and impact on general park use.

COMMUNITY SERVICE GROUP FACILITY USE PROGRAM

To qualify as a "Community Service Group", the organization must meet the following eligibility requirements:

1. The organization shall be a recognized not-for profit organization either by 501(c)(3) designation, NJ certification or tax-exempt status
2. At least 75% of the organization's membership shall be Bernards Township Residents
3. The organization shall provide a Certificate of Liability Insurance naming Bernards Township as an Additional Insured, with the minimum amount of \$1,000,000 in General Liability Coverage.
4. The organization's mission shall be community service based and the organization shall provide evidence of some type of volunteer service to the Bernards Township community

All clubs and sports organizations covered under the Board of Education's Insurance Policy are also eligible for this program.

Each approved community service group is entitled to the following at no cost, each calendar year:

1. Twelve 3-hour uses of the Community Center Activity Room or Recreation Room or the Pleasant Valley Park Warming Hut for group meetings
2. A one day picnic shelter reservation at Southard Park (75 attendees maximum) to hold a group picnic
3. One picnic shelter, gazebo or Community Center reservation to hold a fundraiser, provided the event meets the reserved facility's capacity restrictions

A designated contact person from the community service group must submit an application each year including their contact information, a description of the organization and/or mission statement and a list of members with addresses for verification; and the designated contact person will also be asked to sign an agreement confirming their understanding and compliance with the criteria for approval, reservation policies and procedures, cancellation policies and insurance requirements; all community service groups must abide by the Reservation Policies and Procedures adopted by the Township Committee and the Revised General Ordinances of the Township of Bernards regarding Municipal Parks & Open Space.

DEPARTMENT REFUND POLICY

The following applies to all fees collected by the Parks & Recreation Department. Including, but not limited to, membership payments, activity registration fees and facility rentals charges.

- Refunds must be requested in writing, emailed to recreation@bernards.org or mailed to Parks & Recreation, 1 Collyer Lane, Basking Ridge, NJ 07920.
- Refund request deadlines may vary. Refer to the description or your transaction receipt for the withdrawal deadline. In all cases, refunds will not be issued if requested on or after the program's start date.
- Bus trips are non-refundable. Once paid, you are responsible for selling your own tickets should you be unable to attend.
- All refunds, regardless of method of payment, will be refunded as a check and are subject to a processing fee per registration
 - \$10 Processing Fee for refunds of payments \$300.00 or less
 - \$20 Processing Fee for refunds of payments \$301.00 - \$700.00
 - \$30 Processing Fee for refunds of payments \$701.00+
- Full refunds are issued if the program or trip is canceled by Parks & Recreation.
- Instances of returned funds will be subject to the rules set forth by an annual resolution of the Township Committee authorizing a returned funds fee and certified funds for returned funds.

Disputing a valid charge on your credit card for a fee paid to Parks & Recreation Department is considered an instance of Returned Funds, where the Township has been in receipt of a payment which has been returned from the bank as unpaid.

- A \$20.00 service charge on funds returned will apply.
- The enrollee will be responsible to return payment in the form of cash or check for the balance due on their account created by the dispute reversal before they can enroll any member of their household account for any additional memberships or programs.
- The enrollee may be restricted from using a credit card as payment for a specific period of time or indefinitely.

Resolution #2023-0491 - Resolution Canceling Public Grant Appropriations and Grant Receivable Balances
WHEREAS, certain grant appropriation and receivable account balances remain dedicated to projects now completed and/or cancelled by the grantor; and

WHEREAS, it is necessary to formally cancel said spending reserves and receivable balances so that the unexpended balances may be removed from the Township's Financial Statements.

NOW THEREFORE BE IT RESOLVED by the Township Committee of the Township of Bernards that the following unexpended or uncollected grant appropriations, receivable account balances, and due to/from balances be canceled:

	<u>D</u>	<u>C</u>
<u>Grant Fund Entries</u>		
Grants Receivable – NJDOH – 21' Strengthening Local Public Health Cap.		.26
Grants Receivable – NJDOH – 22' Strengthening Local Public Health Cap.		13,118.00
Grants Appropriated – NJDOH – 22' Strengthening Local Public Health Cap.	12,282.72	
	<u>12,282.72</u>	<u>13,118.26</u>

Resolution #2023-0496 - Resolution Authorizing the Issuance of a Duplicate Tax Sale Certificate Pursuant to N.J.S.A. 54:5-52.1

WHEREAS, the Tax Collector of this municipality has previously issued four tax sale certificates to Daxuan Wang whose address is 7661 Wandering Way, Orlando, FL 32836, certificates which are dated October 13, 2023, and detailed below:

Certificate #	Block	Lot	Qual	Address	Amount
23-00003	1104	8		43 Cherry Ln	\$617.26
23-00006	3803	1		331 S Finley Ave	\$643.51
23-00008	8901	111	CONDO	101 Alexandria Way	\$643.51
23-00009	9301	47		12 Shannon Hill Rd	\$23,404.40

; and

WHEREAS, the purchaser of the aforesaid tax sale certificates has indicated to the Tax Collector that they have lost or otherwise misplaced the original tax sale certificates and have duly filed the Affidavit of Loss with the Tax Collector, copies of which are attached hereto.

NOW THEREFORE BE IT RESOLVED, by the Township Committee of the Township of Bernards, that the Tax Collector of the municipality be and is hereby authorized, upon receipt of the appropriately executed and notarized Loss Affidavits, to issue appropriate duplicate tax sale certificates to said purchaser covering the certificate lost as previously described in accordance with the requirements of Chapter 99 of Public Laws of 1997.

BE IT FURTHER RESOLVED that a copy of this Resolution and the Loss Affidavit be attached to the duplicate certificates to be issued to said purchaser and that said duplicate certificates shall be stamped or otherwise have imprinted upon them the word "Duplicate" as required by law.

Resolution #2023-0499 - Canceling General Capital Ordinance Appropriation Balance for Completed Capital Projects

WHEREAS, certain General Capital Ordinance Appropriation balances remain dedicated to purchases now completed, to be funded in future years, abandoned, or funded by other means; and

WHEREAS, it is necessary to formally cancel said balances to return the unexpended appropriations to the Capital Improvement Fund.

NOW THEREFORE BE IT RESOLVED by the Township Committee of the Township of Bernards that the following unexpended and dedicated balances of General Capital Ordinance Appropriations be cancelled:

<u>Ordinance #</u>	<u>Year</u>	<u>Purpose</u>	<u>Account</u>	<u>Amount</u>	<u>Cancelled To</u>
2397	2018	Eng	C-04-55-397-A01	\$ 618.71	Capital Imp Fund
2417	2019	Eng	C-04-55-417-A02	\$ 2,738.86	Capital Imp Fund
2417	2019	Eng	C-04-55-417-A04	\$ 100,000.00	Capital Imp Fund

Total Cancellations \$ 103,357.57

Resolution #2023-0500 - Award of Bid for Somerville Road Path to AA Berms, LLC, PO Box 180, Belleville, NJ 07109 - In the Amount of \$200,786.00

WHEREAS, the Township of Bernards received bids on Tuesday, November 21, 2023, at 10:30 AM for Somerville Road Path:

BIDDERS NAME	TOTAL BASE BID & ALTERNATE AMOUNT	TOTAL BASE BID
Union Paving & Construction Co., Inc.	\$220,884.00 *	\$208,184.00
AA Berms, LLC	\$229,186.00	\$200,786.00
Capital Paving & Contracting, LLC	\$278,556.00	\$241,736.00
Salmon Brothers, Inc.	\$298,785.00	\$277,785.00
Moynihan Companies	\$489,479.80 '	\$454,979.80 *
Sunset Creations, Inc.	\$548,300.00 '	\$500,900.00 *

** represents unbalanced bid as submitted*

' represents corrected amount due to arithmetic error in bid proposal

WHEREAS, the low bidder, Union Paving & Construction Co., Inc., has submitted an unbalanced bid, whereby a unit price of \$180.00 per ton for Recycled Concrete Aggregate was submitted which does not reflect the items' true cost; and

WHEREAS, Bernards Township project specifications indicate on the Bid Proposal Form that unbalanced bids may be rejected; and

WHEREAS, the other bidders submitted similar unit prices and bid totals, to a more appropriate estimate of true project cost; and

WHEREAS, it is the combined recommendation of the Township Engineer, Administrator and Purchasing Agent to reject the bid of Union Paving & Construction Co., Inc., since the bid does not meet Township specifications; and

WHEREAS, it is the combined recommendation of the Township Engineer, Administrator and Purchasing Agent to award the contract to AA Berms, LLC, PO Box 180, Belleville, NJ 07109 in the amount of \$200,786.00; and

WHEREAS, the Chief Financial Officer has certified that funds are available in the budget; the line item appropriations or Capital Ordinance #2524 line account #C-04-55-524-A04 (\$159,946.40), and Capital Ordinance #2499 line account #C-04-55-499-A01 (\$40,839.60); and

WHEREAS, this contract has been awarded to AA Berms LLC, through a "fair and open process" pursuant to N.J.S.A. 19:44A-20.4, et seq.

NOW THEREFORE BE IT RESOLVED, by the Township Committee of the Township of Bernards, County of Somerset, State of New Jersey, that the bid be awarded to: AA Berms, LLC, PO Box 180, Belleville, NJ 07109 in the amount of \$200,786.00.

NOW THEREFORE BE IT FURTHER RESOLVED, by the Township Committee of the Township of Bernards that in accordance with the bid specifications, the contract between Bernards Township (“Owner”) and AA Berms, LLC, (“Contractor”) shall contain:

1. Provisions of all labor, material, and equipment necessary to perform all work as indicated on the Drawings and Specified for the Somerville Road Path.
2. This contract shall, for all purposes, be deemed a New Jersey Contract and any provision of this contract shall be governed and interpreted with the Laws of the State of New Jersey.
3. Any modification to this contract shall be in writing and signed by both parties and upon obtaining said signatures shall immediately become part of the contract.
4. The cost of this contract is not to exceed the total bid amount unless negotiated in advance of service delivery, and the Township Committee approves an amendment revising that figure.
5. Billing must be rendered within 30 days of service delivery.
6. As required by law, the parties to this contract agree to incorporate into this contract the mandatory affirmative action language promulgated by the Treasurer pursuant to P.L. 1975, c.127, which is attached to resolution as Exhibit B.
7. The Township may terminate this contract if contractor does not fulfill the services as outlined in the Bid Specification, upon five (5) days written notice via certified mail.
8. The work contemplated under the Contract shall be completed within 30 days of the Notice to Proceed.
9. The Contractor shall commence the work not later than ten (10) calendar days after the owner has given the Notice to Proceed Date to the Contractor in writing.
10. The completion time period shall include, but not be limited to, the time necessary to prepare shop drawings, to order, process, and deliver all equipment and materials, to obtain necessary permits and approvals, to perform the proper installation contemplated under this Contract and all else necessary and incidental in connection with the performance of this Contract.
11. If the Contractor fails to complete the work within the specified time plus extensions, the Contractor shall be responsible to the Township for liquidated damages in the sum of \$500.00 per day for every day thereafter until the completion and acceptance of the work. Such liquidated damages shall not be considered as a penalty. The Township shall deduct and retain out of any money due or to become due herein to Contract the amount of the liquidated damages.
12. In accordance with bid specifications, if the Contractor, upon notification by the Township of Bernards, fails to execute the contract prepared by the Township attorney within ten (10) days of such notification with the Township of Bernards, the Township may rescind the award of the bid to the Contractor and award the contract to another bidder, and shall have the right to proceed against the guaranty accompanying the bid.

I agree to the terms as stated in this Resolution and by signing this document, as I am committed to follow all terms of this award.

Juan Alvarado, Owner

CHIEF FINANCIAL OFFICER CERTIFICATION

I, Sean McCarthy, Chief Financial Officer of the Township of Bernards, hereby certify that adequate funds are available for the above referenced purchase in the not to exceed amount of \$200,786.00. Monies are available in the Capital Ordinance, #2524, line-item account # C-04-55-524-A04 (\$159,946.40) and Capital Ordinance, #2499, line item account #C-04-55-499-A01 (\$40,839.60).

Date: December 19, 2023



Sean McCarthy, Chief Financial Officer

Resolution #2023-0501 - Canceling Current Fund 2023 Budget Appropriation Balances

WHEREAS, the following Current Fund 2023 Budget appropriation balances remain unexpended:

<u>BUDGET LINE ITEM</u>	<u>AMOUNT</u>
General Administration S&W	\$ 28,673.65

General Administration OE	\$	46,834.00
Human Resources S&W	\$	33,620.49
Human Resources OE	\$	35,000.00
Township Committee OE	\$	68,000.00
Municipal Clerk S&W	\$	24,037.25
Municipal Clerk OE	\$	34,979.00
Financial Administration S&W	\$	12,125.68
Financial Administration OE	\$	23,765.13
Audit Services	\$	20,000.20
Purchasing Administration S&W	\$	7,809.13
Purchasing Administration OE	\$	24,237.00
Computer Network Administration S&W	\$	24,999.70
Computer Network Administration OE	\$	30,001.00
Revenue Administration S&W	\$	32,533.88
Revenue Administration OE	\$	27,451.00
Tax Assessment Administration S&W	\$	55,737.31
Tax Assessment Administration OE	\$	36,382.00
Legal Services	\$	350,151.00
Engineering Services S&W	\$	31,326.98
Engineering Services OE	\$	67,238.00
Planning Board S&W	\$	33,561.33
Planning Board OE	\$	99,989.00
Bd. of Adjustment S&W	\$	11,471.73
Bd. of Adjustment OE	\$	60,944.00
Environmental Commission S&W	\$	2,997.00
Environmental Commission OE	\$	14,185.00
Code Enforcement S&W	\$	61,982.85
Code Enforcement OE	\$	209,884.64
Unemployment Insurance	\$	18,500.00
Liability Insurance	\$	39,425.23
Workers Compensation Insurance	\$	26,567.84
Employee Group Insurance(SHBP Only)	\$	110,628.28
Waiver from Health Coverage	\$	21,272.30
Employee Benefits (other)	\$	37,199.83
Police S&W	\$	109,999.76
Police OE	\$	25,000.00
Crossing Guards S&W	\$	10,000.00
Crossing Guards OE	\$	5,000.00
Police Cars	\$	33,615.00
Office of Emergency Mgt. S&W	\$	16,620.00
Office of Emergency Mgt. OE	\$	16,093.00
Fire Official S&W	\$	36,360.88
Fire Official / Fire Hydrants OE	\$	57,193.80
Streets and Road Maintenance S&W	\$	54,260.38
Streets and Road Maintenance OE	\$	184,706.00
Streets and Road Maint. - Snow S&W	\$	115,750.00
Streets and Road Maint. - Snow OE	\$	189,000.00
Vehicle Maintenance S&W	\$	61,999.71
Vehicle Maintenance OE	\$	50,406.00
Solid Waste Collection S&W	\$	10,125.00
Solid Waste Collection OE	\$	93,444.00
Public Buildings S&W	\$	34,538.92
Public Buildings OE	\$	60,507.00
Other Public Works Functions - Shade Tree S&W	\$	3,078.00
Other Public Works Functions - Shade Tree OE	\$	11,255.00
Other Public Works Functions - St.Lt.Maint. OE	\$	46,575.00
Municipal Services Act OE	\$	62,430.00
Public Health Services S&W	\$	82,279.69
Public Health Services OE	\$	82,732.00
Animal Control Services S&W	\$	17,391.07
Contributions to Social Svc. Agencies	\$	5,331.00
Recreation Svcs. & Programs S&W	\$	56,553.63
Recreation Svcs. & Programs OE	\$	49,305.00

Grounds S&W	\$	12,448.15
Grounds OE	\$	67,598.00
Pool Commission S&W	\$	6,359.40
Pool Commission OE	\$	31,063.06
Deer Task Force S&W	\$	3,078.00
Deer Task Force OE	\$	13,045.00
Charter Day S&W	\$	6,097.00
Charter Day OE	\$	6,480.00
Accumulated Leave Compensation	\$	130,300.00
Utilities	\$	212,593.28
Solid Waste Disposal S&W	\$	12,618.84
Solid Waste Disposal OE	\$	98,658.00
Public Employees Retirement System	\$	1,000.00
Police & Fire Retirement System	\$	1,500.00
Social Security	\$	42,100.00
Defined Contribution Retirement System	\$	10,000.00
Total Cancellations	\$	4,000,000.00

WHEREAS, it is necessary to formally cancel said balances so that the unexpended balance may be credited to Fund Balance.

NOW THEREFORE, BE IT RESOLVED, by the Township Committee of the Township of Bernards, that the above listed unexpended balances totaling \$4,000,000.00 of the Current Fund's 2023 Budget Appropriations be cancelled.

[Resolution #2023-0502](#) - *Ratification and Approval of PBA/SOA 357 Union Contracts January 1, 2024 through December 31, 2027*

WHEREAS, the Township of Bernards and the PBA/SOA 357 have negotiated in good faith regarding four-year contracts for the period of January 1, 2024 through December 31, 2027; and

WHEREAS, all issues have been resolved to the satisfaction of all parties; and

WHEREAS, the Township Committee of the Township of Bernards has reviewed the terms of settlement and is in agreement.

NOW THEREFORE BE IT RESOLVED, by the Township Committee of the Township of Bernards, that the PBA/SOA 357 Union Contracts dated January 1, 2024 through December 31, 2027, be and are hereby approved.

[Resolution #2023-0503](#) - *Approval of the Memorandum of Agreement Between Bernards Township and the PBA/SOA Local No. 357*

WHEREAS, the Township of Bernards and the PBA/SOA Local No. 357 find it advantageous for Township of Bernards extra duty employment to be performed by Bernards Township Police Officers; and

WHEREAS, the PBA/SOA Local No. 357 has agreed to support all reasonable efforts to ensure outside agencies are not utilized for these jobs; and

WHEREAS, the Township of Bernards and the PBA/SOA Local No. 357 have negotiated in good faith for terms to outline the rate of pay for such work; and

WHEREAS, the Township of Bernards and the PBA/SOA Local No. 357 have commemorated the terms of this agreement into a formal Memorandum of Agreement to cover the period of time from January 1, 2024 through December 31, 2027; and

WHEREAS, the Township Committee of the Township of Bernards has reviewed the terms of settlement and is in agreement.

NOW, THEREFORE BE IT RESOLVED, by the Township Committee of the Township of Bernards, that the Memorandum of Agreement dated December 28, 2023, between Bernards Township and the PBA/SOA Local No. 357 be and is hereby approved and hereby authorizes the Mayor to sign the original of this agreement.

[Resolution #2023-0504](#) - *Authorizing the Establishment of an HRA Program in conjunction with State Health Benefits*

WHEREAS, Bernards Township participates in the State Health Program provided by the New Jersey State Health Benefits Act of the State of New Jersey (N.J.S.A. 52:14-17.25 et seq.); and

WHEREAS, Bernards Township has elected to participate in the State Health Benefits Program as adopted by resolution #050459, voted on 11/29/05 and further by resolution #080400 established NJDirect15 as the Township's base plan; and

WHEREAS, beginning 1/1/2024, the NJ Direct 2035 plan will become the base plan for all employees. Employees will be responsible for paying contributions based on Chapter 78 contribution rates; and

WHEREAS, if any employee elects to enroll in coverage other than NJ Direct 2035, the employee shall pay all costs above the cost of NJ Direct 2035 associated with the coverage elected; and

WHEREAS, beginning 1/1/2024 Bernards Township will provide employees enrolling in the NJ Direct 2035 plan with a health reimbursement program; and

WHEREAS, the Township will fund an HRA account for each employee regardless of their level of coverage (single, member/spouse, parent/child or family) with \$15,120 per year; and

WHEREAS, the HRA program shall be administered through a debit card provided by the Township; and

WHEREAS, employees shall not contribute towards the cost of the HRA program; and

WHEREAS, if the HRA program pursuant to this resolution ceases for any reason and is not replaced with a similar program, the base plan shall revert to NJ Direct15 at that time.

NOW, THEREFORE BE IT RESOLVED, by the Township Committee of the Township of Bernards that we do hereby authorize the establishment of the HRA program in conjunction with State Health Benefits.

End Consent Agenda

[Resolution #2023-0468](#) - *Appointment of Municipal Court Judge - Bedminster Township, Borough of Peapack and Gladstone, Borough of Bernardsville, and Bernards Township Shared Municipal Court Honorable Katherine E. Howes, Esq.*

Motion by Asay, second by Baumann, that Resolution #2023-0497 be approved.

Roll Call:

Aye: Asay, Baumann, McNally

Nay:

Abstain: Fields

Motion carried.

WHEREAS, the position of Judge is a statutory position, pursuant to N.J.S. A. 2B:12-4; and

WHEREAS, Bernards Township appointed Katherine E. Howes effective 03/22/2022 expiring 12/31/2023 as the Municipal Court Judge; and

WHEREAS, the Bedminster Township, Borough of Peapack and Gladstone, Borough of Bernardsville and the Bernards Township reviewed their needs, resources and personnel and found that they could assist each other at considerable savings to the taxpayers of each municipality by establishing and operating a shared municipal court; and

WHEREAS, the Township Committee of the Township of Bernards found it to be in the best interest of the Township and its residents to entered into a Shared Services Agreement on 06/01/2020, amended 07/14/2020 and commencing on or about 08/01/2022 with the Borough of Peapack-Gladstone, Borough of Bernardsville, and Bedminster Township for the establishment and operation of a shared municipal court; and

WHEREAS, there is a need for re-appointment of the Municipal Judge by Bernards Township for the Bedminster Township, Borough of Peapack and Gladstone, Borough of Bernardsville, and Bernards Township Shared Municipal Court; and

WHEREAS, the Shared Municipal Court Services Advisory Committee recommends the following appointment to the position of Municipal Judge to the Shared Court.

NOW THEREFORE, BE IT RESOLVED, that the Mayor and Township Committee do hereby approve the appointment of Municipal Judge Katherine E. Howes, Esq. from 01/01/2024 – 12/31/2026 for the Bedminster Township, Borough of Peapack and Gladstone, Borough of Bernardsville, Township of Bernards Shared Municipal Court.

Approval of Minutes:

12/12/2023 Open Session Minutes and Closed Session Minutes

Motion by Fields, second by Asay, and unanimously agreed that the 12/12/2023 Open Session minutes be approved for content and release, and the 12/12/2023 Executive Session Minutes be approved for content.

EXECUTIVE SESSION (if required)

None.

ADJOURNMENT

By unanimous consent, the meeting adjourned at 07:31 PM.

Christine V. Kieffer
Municipal Clerk

Jennifer Asay
Mayor

Approved:01/23/2024